

TORME et al v. JENNINGS et al

22CV46038

**PLAINTIFFS' MOTION FOR JUDGMENT VIA DEFAULT;
DEFENDANTS' MOTION TO SET ASIDE**

This is a quiet title action involving an easement for ingress and egress between adjoining parcels APN 012-004-005 and APN 012-004-019, which plaintiffs describe as an easement of necessity given the remoteness of the cabin thereon and the loss of an access bridge previously available to plaintiffs.

Before the Court are what amount to competing motions: one by the plaintiffs to secure a quiet title judgment via default; and the other by defendants to set aside the entry of default. Given the unique nature of default proceedings in quiet title actions, a quick primer/reminder is warranted.

In a quiet title action, after a defendant defaults, the plaintiff must prove the merits of its claim and the grounds for the relief sought with *admissible* evidence at a *live* hearing in *open* court, and the defendant has a due process right to notice of the hearing and an opportunity to actually participate therein. (CCP §764.010; see *Pattera v. Hansen* (2021) 64 Cal.App.5th 507, 532; *Deutsche Bank National Trust Co. v. Pyle* (2017) 13 Cal.App.5th 513, 524; *Nickell v. Matlock* (2012) 206 Cal.App.4th 934, 941-947; *Harbour Vista, LLC v. HSBC Mortgage Services Inc.* (2011) 201 Cal.App.4th 1496, 1504-1509.) Therefore, the entry of default in a quiet title action serves in essence the singular purpose of cutting off defendants' right to conduct discovery, but nothing else.

First, a review of the Proof of Service on plaintiff's motion to enter judgment, set for today, fails to include any address for the alleged mail-service on either defendant. (See Paragraph 5.) Since there is no competent evidence that defendants were provided due process notice for the hearing on *plaintiffs' motion* today, that motion must be continued. However, before doing so, this Court must determine if the default was properly entered.

The defendants were defaulted on 10/06/22 via clerk's entry. To determine whether they acquiesced by silence to this Court's jurisdiction more than 30 days prior, it is necessary to review plaintiffs' efforts to effectuate service of the summons.

- Plaintiffs contend that defendants are residents of California. (See Complaint Paragraph 3.)
- Plaintiffs learned "through their realtor" that defendants lived in Nevada, and attempted service at 94 Lake Village Drive Unit A, Zephyr Cove, NV 89448. According to the process server, the occupant therein informed the server that

defendants owned the property, but actually lived in California. This report is suspect since defendants are using this same address (albeit Stateline 89449, not Zephyr Cove 89448) on their motion to set aside the default.

- Plaintiffs performed a skip trace and formed the opinion that defendants resided in California at 1600 Woodhouse Mine Road in West Point. Plaintiffs' process server made two attempts to serve at this address, but was unable to pass the locked gate. The server was in contact with a property "caretaker" who neither confirmed nor denied defendants' residency. There is some indication that the Calaveras Sheriff attempted service as well. Notably, defendants concede receiving a copy of the Request for Entry of Default mail-served to this address within two days of its mailing (despite describing this as their vacation ranch).
- Plaintiffs secured authority from this Court to serve by publication in the Calaveras Enterprise, but in fact never caused the summons to be published therein. Although the court order stated that first-class mail with POS-30 would be sufficient, that does not effectively supersede publication for purposes of CCP §415.50(d). Instead, the service must still be by an authorized method, and first-class mail without a notice and acknowledgement is only effective when combined with publication when a service address is subsequently discovered. (See CCP §415.50(b).)

There are unresolved concerns regarding all forms of service allegedly employed. Even if service was sufficient, "it is the policy of the law to favor, whenever possible, a hearing on the merits ... when a party in default moves promptly to seek relief, very slight evidence is required to justify a trial court's order setting aside a default." (*Shamblin v. Brattain* (1988) 44 Cal.3d 474, 478-479; in accord, *Bonzer v. City of Huntington Park* (1993) 20 Cal.App.4th 1474, 1478.) Defendants said they never received the summons and have quickly appeared and tendered first appearance fees once they learned of the default. This is sufficient basis to grant relief. (See CCP §473(b); in accord, *Hearn v. Howard* (2009) 177 Cal.App.4th 1193, 1206; *Sporn v. Home Depot USA, Inc.* (2005) 126 Cal.App.4th 1294, 1300.)

Defendants' motion to set aside defaults is GRANTED. Defendants to answer in 10 court days, and to accept electronic service of all papers going forward. Plaintiffs' motion to enter default judgment is DENIED as moot.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendants to prepare formal Orders pursuant to Rule of Court 3.1312 in conformity with these rulings.

HESSLER v. KAUTZ VINEYARDS

21CV45613

DEFENDANT'S MOTION TO COMPEL DISCOVERY

This is a personal injury action involving an alleged trip-and-fall at defendant's event facility. Before the Court is defendant's single, commingled motion to compel responses to Form Interrogatories, Special Interrogatories, and Requests for Production of Documents.

Pursuant to Calaveras County Superior Court Local Rule 3.3.7, "all matters noticed for the Law & Motion calendar shall include" specified language in the Notice of Motion, and "failure to include this language in the notice may be a basis for the Court to deny the motion." The notice of motion herein fails to include the required warning regarding tentative rulings, necessitating a DENIAL of the motion without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes.

Moreover, while there is no substantive opposition to the motion, plaintiff's counsel advises that plaintiff has passed away and the family requires additional time to determine whether a personal representative will substitute into the case to pursue that portion of the action surviving plaintiff's passing. Plaintiff's counsel expects to remain involved with the case, and concedes the righteousness of defense counsel's request for fees. It seems to this Court that plaintiff's passing provides substantial justification for avoiding sanctions, but these matters ideally should be resolved between the parties in a timely manner.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further order is required.